SAAS SUBSCRIPTION AGREEMENT

Inbound Marketing & CRM Platform

Agreement Date:	February 01, 2025
Contract ID:	HSPT-2025-00093
Vendor:	HubSpot, Inc. | 25 First Street, 2nd Floor, Cambridge, MA 02141
Customer:	Acme Corporation | 1600 Technology Drive, Halifax, NS B3J 1N9
Effective Date:	February 01, 2025
Renewal Date:	January 31, 2026
Contract Term:	12 months (February 1, 2025 – January 31, 2026)
Auto-Renewal:	Yes – 60-day written notice required to cancel
Notice Period:	60 days written notice required
Contract Value:	$12,000.00 USD / year
Pricing Escalation:	4% annual escalation; additional seats priced separately

1. Scope of Services

HubSpot, Inc. ("Vendor") agrees to provide Acme Corporation ("Customer") with access to the following services and licensed products for the Marketing department under this Agreement:

- Marketing Hub Professional — 5 core seats
- 10,000 marketing contacts included
- Email automation and A/B testing
- Landing page and blog tools
- CRM integration with Salesforce
- Onboarding and phone support included

2. Fees & Payment Terms

The total annual contract value is $12,000.00 USD, invoiced annually in advance on the Effective Date of each contract year. Payment is due within 30 days of invoice date. Late payments accrue interest at 1.5% per month. All fees are exclusive of applicable taxes.

Pricing escalation terms: 4% annual escalation; additional seats priced separately.

3. Auto-Renewal & Cancellation

This Agreement will automatically renew for successive 12-month periods at the then-current pricing plus the applicable annual escalation rate, unless either party provides written notice of non-renewal at least 60 days prior to the Renewal Date.

Cancellation notice must be submitted in writing to billing@hubspot.com and acknowledged in writing by Vendor to be effective. Customer remains liable for fees through the end of the current term regardless of cancellation.

4. Service Level Agreement (SLA)

- 99.99% uptime for Marketing Hub
- P1: 1-hour response via 24/7 support
- Dedicated Customer Success Manager
- Monthly performance reviews included

5. Data Security & Privacy

Vendor will maintain SOC 2 Type II and ISO 27001 certifications throughout the term. Customer data is encrypted in transit (TLS 1.2+) and at rest (AES-256). Vendor will notify Customer within 72 hours of any confirmed data breach affecting Customer data. Data handling complies with applicable Canadian privacy legislation (PIPEDA / provincial equivalents).

6. Key Terms & Conditions

- Intellectual Property: All Vendor software, documentation, and derivatives remain the exclusive property of Vendor.
- Confidentiality: Both parties agree to maintain strict confidentiality of proprietary business information for 3 years beyond termination.
- Limitation of Liability: Vendor's aggregate liability shall not exceed the total fees paid in the 12 months preceding the claim.
- Governing Law: This Agreement is governed by the laws of the State of Massachusetts, USA.
- Dispute Resolution: Disputes shall first be escalated to executive sponsors; unresolved disputes proceed to binding arbitration.
- Force Majeure: Neither party is liable for delays caused by events beyond reasonable control.
- Assignment: Customer may not assign this Agreement without prior written consent of Vendor.

7. Signatures

By signing below, both parties agree to be bound by the terms and conditions of this SaaS Subscription Agreement as of the Effective Date stated above.

FOR HUBSPOT, INC.

Sofia Patel
Enterprise Account Executive
HubSpot, Inc.
February 01, 2025

FOR ACME CORPORATION

Marcus Reid
Chief Financial Officer
Acme Corporation
February 01, 2025